



UMT | OPA
Office of Participant Affairs



UMTMUN V

STUDY GUIDE FOR



**UNITED NATIONS HUMAN
RIGHTS COUNCIL**

TABLE OF CONTENTS

1. Introduction to the Committee.....	3
2. History and Establishment.....	3
3. Structure.....	3
4. Mandate and Powers.	3
5. Introduction to the Agenda.....	3
6. Key Terminologies....	4
7. Overview of the African Mining Sector.....	4
8. The Critical Minerals Boom.....	4
9. Artisanal, Small-Scale and Industrial Mining	5
10. Patterns of Forced Labour and Exploitation.....	5
11. Forms of Exploitation	5
12. Child Labour in the Mining Sector.....	5
13. Regional Case Studies.....	6
14. The Democratic Republic of the Congo: Cobalt and Copper.....	6
15. West Africa's Gold Belt.....	6
16. Conflict Minerals and Armed Groups.....	6
17. Legal and Regulatory Frameworks.....	6
18. International Labour Standards.....	6
19. The UN Guiding Principles on Business and Human Rights.....	7
20. The OECD Due Diligence Guidance...	7
21. Regional and National Measures.....	7
22. Corporate Accountability.....	7
23. The Role of Mining Companies.....	7
24. Downstream Manufacturers and End-Users.....	7
25. Towards Responsible Mineral Supply Chains.....	8
26. International Response.....	8
27. Implications.....	8
28. The Way Forward...	9
29. Questions A Resolution Must Answer (QARMA)...	9
30. For Further Reading.....	10





UNITED NATIONS HUMAN RIGHTS COUNCIL (UNHRC)

INTRODUCTION TO THE COMMITTEE

The General Assembly formed the United Nations Human Rights Council in 2006 by adopting the resolution 60/251. The Commission had been criticised by various quarters for its politicization and its inability to take an effective action when faced with serious human rights violations, and the Council was established to provide a more effective and credible means by which the United Nations could promote and protect human rights around the world. Its activities are based on the principles laid out in the Universal Declaration of Human Rights in 1948.



STRUCTURE

The Council is made up of 47 member states appointed by the General Assembly, based on equitable geographical distribution. A membership term is for three years and no member will be re-elected within two term limits. The Council is located in Geneva and is an intergovernmental body of the United Nations system, holding regular sessions all year round and special sessions when necessary.

The Council works on a number of levels. The Universal Periodic Review is a process that reviews the human rights record of each UN member state on a rotating basis and allows each government to report on the steps it has taken to improve its human rights record. Special Procedures are independent experts and working groups that report on thematic issues or country specific situations that are connected with business practices, labour exploitation and extractive sector issues.

MANDATE AND POWERS

The Council's main task is to implement universal respect for human rights and to examine instances and situations of violations of human rights, among others by making recommendations to the States. It can create commissions of inquiry or fact-finding missions when allegations of serious abuse occur, make resolutions urging states and other actors to correct their behavior, and, when gross and systematic violations have occurred, recommend that a member's participation in the Council be suspended to the General Assembly. While not binding like Security Council resolutions, its resolutions are nonetheless very normative and diplomatic and often have a great influence on further negotiation of treaties, national laws and corporate actions.

INTRODUCTION TO THE AGENDA

The minerals upon which the modern global economy depends, such as the cobalt and copper in electric vehicle batteries, the gold in international reserves, and the tin, tantalum and tungsten in electronics manufacturing, are abundant in Africa. The majority of the world's mined cobalt comes from the Democratic Republic of the Congo and gold-producing belts cross the west and east of Africa. The global energy transition and growing use of digital technology have made these commodities more in demand than ever before.

This expansion has not been paralleled by sufficient safeguards for workers exploiting these resources. Reporting of forced labour, debt bondage, child labour, work in hazardous conditions, wage theft, and violent repression of labour organizing persists in both artisanal and small scale and industrial mining, with credible reports by UN agencies, national labour ministries, academic researchers, and civil society groups. In 2025, the Rights Lab at the University of Nottingham reported that more than half of artisanal cobalt miners surveyed in the Democratic Republic of the Congo were victims of forced labour or severe exploitation, and in 2024, the U.S. Department of Labor (DOL) added cobalt from Congolese industrial mines to its forced labour designation, citing a growing body of evidence that such abuse is not limited to artisanal operations.

Meanwhile, the supply chains of the minerals from Africa to world manufacturers are also hard to follow. Ore mined in undesirable circumstances often goes into products as a mix with legally-mined ore, rendering it hard to determine by downstream companies how their raw materials were mined. This agenda seeks to explore how and to what extent forced labour and exploitation occur in African mining, to review the effectiveness of current corporate accountability mechanisms, and to discuss the potential to enhance, without jeopardizing the livelihoods of the millions of Africans who rely on it, due diligence and supply chain transparency measures.

KEY TERMINOLOGIES

- **Forced Labour:** work or service obtained from a person by means of such penalty as to create a special pressure on him to do it and which he does not perform of his own free will, pursuant to the International Labour Organization's Forced Labour Convention (No. 29).
- **Artisanal and Small-Scale Mining (ASM):** low technology and labour-intensive mining and mineral processing mostly carried out by a person or a family or a small group of persons or cooperatives without much mechanisation or regulation.
- **Large-Scale Mining (LSM):** industrial mining by formally licensed companies with the aid of heavy machinery and extraction methods that require large capital investments, frequently in the form of joint ventures between multinational companies and state mining companies.
- **Conflict Minerals:** minerals mined in armed conflict or unstable situations that fund armed groups, typically referred to as tin, tantalum, tungsten and gold (3TG).



- **Forced Labour:** work or service obtained from a person by means of such penalty as to create a special pressure on him to do it and which he does not perform of his own free will, pursuant to the International Labour Organization's Forced Labour Convention (No. 29).
- **Artisanal and Small-Scale Mining (ASM):** low technology and labour-intensive mining and mineral processing mostly carried out by a person or a family or a small group of persons or cooperatives without much mechanisation or regulation.
- **Large-Scale Mining (LSM):** industrial mining by formally licensed companies with the aid of heavy machinery and extraction methods that require large capital investments, frequently in the form of joint ventures between multinational companies and state mining companies.
- **Conflict Minerals:** minerals mined in armed conflict or unstable situations that fund armed groups, typically referred to as tin, tantalum, tungsten and gold (3TG).
- **Due Diligence:** the process through which a company identifies, prevents, mitigates and discloses its approach to human rights and environmental impacts that are adverse and can arise in its operations and supply chain.
- **Supply Chain Traceability:** ability to trace a mineral from its extraction all the way through smelting, refining and manufacturing until it is delivered to the end product, allowing for verification of sourcing conditions.
- **Debt Bondage:** a type of forced labour where a worker is forced to work for a pit owner or trader to pay off a debt, typically with conditions that ensure that repayment is virtually impossible, such as in the case of advance payment between miners and traders or pit owners.

OVERVIEW OF THE AFRICAN MINING SECTOR

THE CRITICAL MINERALS BOOM

A large portion of several new minerals that are key to the global energy transition are found in Africa. The Democratic Republic of the Congo is the world's largest producer of mined cobalt (which is used in lithium-ion batteries), with the Lualaba and Haut-Katanga provinces producing about 75% of all mined cobalt in the world in 2024.



South Africa is the largest producer of platinum group metals, Guinea has one of the world's largest bauxite deposits and gold is mined across a swath of West Africa from Ghana to Mali, Burkina Faso, Côte d'Ivoire, Guinea and Senegal as well as in Sudan, South Sudan and Tanzania.

With the growth of electric vehicle production and renewable energy storage, the demand for battery metals has grown in the global market, increasing the investment in cobalt from African countries such as DRC, especially by Chinese State-backed and private companies who now account for a significant portion of cobalt production in the country and an even larger downstream refining capacity. This investment has created jobs and infrastructure as well as export revenue for the producing countries, though regulation has not always been able to keep up with the rate of growth and unpolicied gaps are enabling labour exploitation.

ARTISANAL, SMALL-SCALE AND INDUSTRIAL MINING

Two general systems of mineral extraction are in use on the continent, often working concurrently. Licensed industrial mining is carried out by companies, frequently multinational joint ventures with state mining companies, employing formalization and mechanized methods. Artisanal and small-scale mining is, on the other hand, informal, labour intensive and mostly non-mechanised, using hand picks, shovels and pans to dig, separate and wash ore. Well in excess of 200,000 Congolese would be involved in artisanal cobalt mining if estimates are correct, while millions of people in West and East Africa are involved in artisanal gold mining.

The artisanal sector is informal, and this is at the heart of the problem of forced labour. They are often not hired with a contract, don't receive any safety gear, don't have minimum wage protections and are often subject to debt bondage with pit owners or traders by receiving advance payments. However, investigations have revealed that there is a parallel lack of accountability at the large-scale end of the sector as workers are engaged in subcontract arrangements, many of which are not directly monitored by the industrial company.

PATTERNS OF FORCED LABOUR AND EXPLOITATION

FORMS OF EXPLOITATION

African mining has many overlapping forms of exploitation. In artisanal operations, miners are frequently provisioned by the pit financier with food, tools or cash, and then expected to pay back a fixed percentage of their haul, sometimes at the financier's own price, until the debt is paid off. Even when wages exist, they are often well below a living wage: In the Kolwezi cobalt belt, a 2025 field study revealed that many industrial workers in the sector who worked physically intensive and dangerous jobs were paid almost two dollars per day, when wages were paid at all.

In both artisanal and industrial workplaces there are significant occupational health and safety issues. Unregulated artisanal pits often experience tunnel collapses, protective equipment is often lacking, and workers and communities around the artisanal pits are exposed to processing chemicals (such as mercury and cyanide) and heavy metals for long-term effects. In 2025, water samples were collected near cobalt mines and found to be contaminated with high levels of water pollutants, well beyond the level recommended by the WHO. There are also regular restrictions on freedom of association, such as restrictions on union activity and access to grievance systems for subcontracted workers, reported in the reporting period.

CHILD LABOUR IN THE MINING SECTOR

Artisanal mining continues to be a stoking issue on the continent involving child labour. It is estimated from reports that there are tens of thousands of children under the age of 18 or even as young as six, engaged in artisanal cobalt mining in Congo, performing various activities including digging, sorting and transporting, in conditions that expose them to the risk of injury and toxic exposure. In West Africa's gold belt, the International Labour Organization and Human Rights Watch have cited the presence of tens of thousands of children in West Africa's gold belt working in artisanal gold mining, often in direct contact with mercury used in gold amalgamation, in Mali alone. Children's employment in artisanal mining is a constant despite the national and international ban on child labour, due to the poverty conditions in which mining takes place, the lack of access to formal education, and the nature of the mining work, which is predominantly formal and cash-based.

REGIONAL CASE STUDIES

THE DEMOCRATIC REPUBLIC OF THE CONGO: COBALT AND COPPER

The cobalt belt in the DRC is the best documented case of forced labor in African mining. In a study of over 1,400 artisanal miners conducted by the University of Nottingham Rights Lab in Lualaba and Haut-Katanga, more than a third said they had suffered forced labour and a majority said they had been subjected to conditions that met a wider definition of severe exploitation. The United States Department of Labor (DOL) has added cobalt from Congolese industrial mines to its List of Goods Produced by Child or Forced Labour, following investigations that revealed subcontracted labour abuses at several large facilities, including joint ventures by Glencore, the Eurasian Resources Group and Chinese state-backed mining companies, in September 2024.

This added to the fact that about 70 percent of the DRC's cobalt is exported to China through Chinese-owned or Chinese-financed mines, and a roughly 90 percent share of Congolese cobalt is processed in China, makes it difficult to determine who is responsible for what's going on at the point of extraction. Civil society organizations in the region, including RAID and AFREWATCH, report some positive developments since their groundbreaking 2021 report, including new collective bargaining agreements at a few Chinese-owned mines, and an increase in the number of labour inspectors deployed. But they note that conditions for subcontracted workers are still harsh and that the majority still do not earn a living wage.

WEST AFRICA'S GOLD BELT

Artisanal and small-scale mining are a significant part of the gold industry in Ghana, Mali, Burkina Faso and neighboring countries. In Mali, the government's research and Human Rights Watch's documentation have revealed that a significant portion of the artisanal mining sector also consists of children, with many involved in gold amalgamation exposed to mercury, and there are also documented cases of adult forced labour. In Ghana, where galamsey (informal mining) is a major problem, it has grown rapidly in recent years, leading to child labour, hazardous working environments, environmental damage and has become a national political hot topic, because of the impact it has on export revenues and GDP. The U.S. government has found evidence or the risk of forced labour in gold mining in over 12 African states, indicating that the issue is not limited to any one country.



CONFLICT MINERALS AND ARMED GROUPS

Some areas of the eastern DRC and the Sahel are experiencing direct linkages between mineral extraction and armed conflict. Historically, profits from gold, tin, tantalum and tungsten have funded non-state armed groups in the eastern DRC, and in Sudan, the United Nations has recorded connections between gold mining and smuggling networks and the funding of the conflict, in addition to the ongoing use of child recruitment by non-State Armed Groups. Where mining operations are in the hands of armed groups, workers are particularly vulnerable to coercion and international initiatives to trace and limit the trade in conflict minerals are being created specifically to address this situation, including the 3TG designation used in the EU and US regulations.

LEGAL AND REGULATORY FRAMEWORKS

INTERNATIONAL LABOUR STANDARDS

The ILO is the body which establishes the main global standards regarding forced and child labour. The Forced Labour Convention (No. 29) of 1930 and its 2014 Protocol call on states to eliminate forced labour and provide remedy for victims, the Worst Forms of Child Labour Convention (No. 182) of 1999 obligates states to eliminate hazardous child labour, which includes mining, and the Minimum Age Convention (No. 138) establishes minimum age limits for work. All the member states of the ILO have agreed to respect and promote these principles in the 1998 Declaration on Fundamental Principles and Rights at Work, irrespective of whether they are ratified.

THE UN GUIDING PRINCIPLES ON BUSINESS AND HUMAN RIGHTS

In 2011, the UN Guiding Principles on Business and Human Rights were endorsed by the UN Human Rights Council, which require States to take steps to protect human rights from the actions of third parties, including companies and companies to take steps to respect human rights in their operations and value chains, including through human rights due diligence. While the Guiding Principles are the key international benchmark for corporate accountability in the extractive sector, they are not binding and can only be effective in practice with implementation in the national context and voluntary adoption by companies.

THE OECD DUE DILIGENCE GUIDANCE

The OECD Due Diligence Guidance for Responsible Supply Chains of Minerals from Conflict-Affected and High-Risk Areas outlines five steps that companies are expected to take: setting up effective management systems, identifying and assessing supply chain risk, designing and implementing a response strategy to the identified risks, arranging independent third-party audits of smelter and refinery due diligence practices, and publicly reporting on due diligence performance. It is mineral neutral, and has been most fully translated into practice for the minerals of the DMTGs, through industry projects like the Responsible Minerals Initiative.

REGIONAL AND NATIONAL MEASURES

The EU Conflict Minerals Regulation which came into effect in 2021, is making EU importers of tin, tantalum, tungsten and gold with above threshold volumes implement OECD conflict mineral supply chain due diligence. The general “Corporate Sustainability Due Diligence Directive” adopted in 2024 also broadened the scope of the requirements for human rights and environmental due diligence for large companies with EU operations, but with the time limits for implementation having been postponed in the latest proposals from the Commission in 2025. The Department of Labor in the United States maintains the List of Goods Produced by Child Labor or Forced Labor, including cobalt and gold from several African countries, and the U.S. customs authorities have the power to issue Withhold Release Orders prohibiting goods with reasonable suspicions of being tainted with forced labour. The Modern Slavery Act (MSA) 2018 mandates that large businesses make statements about their efforts to prevent forced labour and trafficking within their supply chains once a year.

CORPORATE ACCOUNTABILITY

THE ROLE OF MINING COMPANIES

As either direct operators or partners in joint ventures with state mining enterprises, companies are primarily responsible for conditions at their own mines and from the practices of subcontractors they utilize. There have been investigations of various large copper and cobalt mines in the DRC, and it has been established that the abuse is limited to subcontracted workers, leaving the lead operators at a safe distance from the site, even when conditions at the mining site are far lower than international standards. In some instances, companies have reacted to criticism by dismissing subcontractors who have been abusing workers and by implementing social auditing and raising wages in certain operations, but civil society groups say that such “good faith” corporate actions have not been consistently enforced or independently verified throughout the industry.

DOWNSTREAM MANUFACTURERS AND END-USERS

In addition to the mining companies, it also applies to the smelters, refiners, battery and electronics producers and the brands that make use of the minerals in their products. The source of raw material from several mines and sourcing conditions is often mixed together prior to or during the refining process, making it technically challenging to trace a particular batch of cobalt, gold or copper from the mine and claim to have some visibility of conditions further upstream. The aim of emerging value chain due diligence laws is to fill this gap by imposing legal liabilities on large companies to trace and monitor their entire value chain, instead of relying solely on suppliers' self-assessments.

TOWARDS RESPONSIBLE MINERAL SUPPLY CHAINS

Several multi-stakeholder programs make efforts to make due diligence guidance work in terms of operational traceability systems. The Responsible Minerals Initiative has audit and assessment programs for smelters and refiners of the four target minerals (tin, tantalum, tungsten, and gold) that enable downstream companies to track their supply chain to identify companies that comply with the recognized due diligence principles. The International Tin Supply Chain Initiative (ITSCI) is a chain-of-custody system for bag-and-tag traceability that is used in the mines of portions of Central Africa to help trace minerals through export. The Kimberley Process Certification Scheme, although limited and only focusing on rough diamonds, is a useful example of how a mineral-specific certification scheme could be designed, and a reminder of the challenges faced by the type of certification regimes which address only the financing of armed conflict and not the wider scope of labour rights violations.

These mechanisms continue to be hampered. Implementing and monitoring a certification and traceability system is expensive, and the poorest artisanal miners may be excluded from the formal market without helping to solve the root causes of poverty that are responsible for attracting people to risky and low-paying mining operations. Another criticism is that historically, due diligence processes have been more concentrated on conflict financing than on labour conditions, allowing a mineral to meet due diligence requirements regarding armed groups' involvement in the mines, whilst still being extracted using forced or child labour. Supply chain traceability coupled with direct investments in the formalization of artisanal mining, fair pricing arrangements for the small-scale miners and a greater capacity for labour inspection in the producing states would be essential for effective reform.

INTERNATIONAL RESPONSE

In recent years, the attention paid to labour conditions in African mining has significantly increased due to the large volumes of cobalt and battery metal requirements linked to the energy transition. UN Special Procedures, such as the Working Group on Business and Human Rights, have discussed the extractive sector as part of their mandate on corporate accountability, while the UN human rights mechanisms have periodically discussed concerns regarding mining-linked abuses during UPRs for producing States. The ILO goes on with technical cooperation programs to combat child labour in artisanal mining operations in West and Central Africa.

National and regional regulators have walked on parallel paths. The US has expanded its forced labour designations to include both artisanal and industrial cobalt from the DRC and gold from over a dozen African states has documented evidence or identified a risk of forced labour, according to the US Trafficking in Persons Report. The European Union has introduced mandatory due diligence obligations for 3TG minerals, and is proposing to extend the scope of its human rights due diligence (CSDD) to large companies that operate in the EU market, despite recent changes to the timeline for implementation. Producer's states, including the DRC and Ghana, have implemented plans to enhance the capacity of labour inspection and formalize artisanal mining, but there is a lack of resources to enforce these plans and in some areas, insecurity persists.

IMPLICATIONS

HUMAN AND SOCIAL COSTS

The human toll of forced labour and exploitation in mining is felt by the individual miners and their families, including injury, chronic illnesses resulting from toxic conditions at mining sites, the loss of education for children working in the mines and the perpetuation of poverty due to debt bondage and low wages. The consequences of mining are not restricted to miners, but extend to communities that surround the mines as well, with consequences like water pollution and land degradation.

ECONOMIC AND TRADE CONSEQUENCES

In producing states, mining exports also form a significant component of GDP and foreign exchange earnings, and hence, any national and international interests in the labour conditions are far from trivial.

The designations and import bans in key consumer markets can affect trade volumes, and put pressure on the governments and companies in the affected economies to improve their conditions; on the other hand, they can harm legitimate small-scale miners if not designed appropriately or if they are applied indiscriminately.

CONSEQUENCES FOR THE GLOBAL ENERGY TRANSITION

Given the importance of DRC cobalt, particularly, in the race to replace fossil fuels, labour conditions in African mining have a direct influence on the progress and image of the global transition to electric vehicles and renewable energy storage. As information about mining practices in and around the world's highest-risk sourcing areas of origin emerges, manufacturers are increasingly at risk to reputational and legal liability if their products are found to contain minerals associated with forced or bonded labour, and have an incentive to strengthen their due diligence efforts and also to invest in responsible sourcing initiatives as much as genuine efforts to clean up supply chains but not simply to avoid higher-risk sourcing areas.

THE WAY FORWARD

Solving the problem of forced labour in African mining will most likely need to be tackled from multiple angles. Improved and coordinated application of mandatory due diligence in key consumer markets can mitigate the risk of companies gaming the system by moving sourcing toward jurisdictions with looser requirements as well as, or instead of, better conditions. If traceability systems existed in the future, and were independent and certified by third parties, they could be expanded beyond the 3TG minerals that are currently covered by the majority of traceability schemes, to other minerals used in batteries, such as cobalt.

The formalisation of artisanal and small-scale mining combined with better pricing systems, community organization and credit provision for small-scale miners, other than through debt bondage, can lessen the risk of debt bondage for miners, rather than eliminate the practice. Building the capacity of labour inspectors, building infrastructure for occupational health and safety and providing access to education in mining communities would help overcome some of the root causes of child labour. Finally, ongoing cooperation between the producing states, importing states, mining companies, and the downstream manufacturers and civil society organizations is key, as there is no one individual solution in the supply chain.

QUESTIONS A RESOLUTION MUST ANSWER (QARMA)

1. What is the main cause of forced labour and exploitation in artisanal, small-scale and industrial mining in Africa and how is it different in these two?
2. What are the ways in which existing due diligence frameworks, e.g., OECD Guidance and UN Guiding Principles, need to be further developed to include other minerals, such as cobalt and other battery minerals?
3. Who should bear responsibility for mining, subcontracting, smelting and refining and downstream manufacturing and how should the responsibility be held?
4. How to ensure that the traceability and certification systems in the chain support rather than marginalize legitimate artisanal miners, without eliminating them from existing markets?
5. How should the role of producing states, importing states, regional and international organizations in monitoring compliance and technical and financial support for the reform be defined?
6. What action should the Council take to reconcile the need for critical minerals in this fast-moving global energy transition, with the need to remove forced and child labour from mineral supply chains?
7. How can remedies and compensation be put in place for workers who have already experienced forced labour or exploitation in the mining industry?

FOR FURTHER READING

- **University of Nottingham Rights Lab (2025). Blood Batteries: The Human Rights and Environmental Impacts of Cobalt Mining in the Democratic Republic of the Congo.** <https://www.nottingham.ac.uk/news/blood-batteries>
- **United States Department of Labor, Bureau of International Labor Affairs (2024). Forced Labor in Cobalt Mining in the Democratic Republic of the Congo.** <https://www.dol.gov>
- **RAID and AFREWATCH. Reports on labour conditions in DRC industrial copper and cobalt mining.** <https://raid-uk.org>
- **Human Rights Watch (2011, updated). A Poisonous Mix: Child Labor, Mercury, and Artisanal Gold Mining in Mali.** <https://www.hrw.org>
- **Organization for Economic Co-operation and Development. Due Diligence Guidance for Responsible Supply Chains of Minerals from Conflict-Affected and High-Risk Areas.** <https://www.oecd.org>
- **United Nations. Guiding Principles on Business and Human Rights (2011).** <https://www.ohchr.org/en/business-and-human-rights>
- **European Commission. Corporate Sustainability Due Diligence Directive (2024/1760) and EU Conflict Minerals Regulation.** <https://commission.europa.eu>
- **United States Department of State. 2024 Trafficking in Persons Report.** <https://www.state.gov>
- **Business and Human Rights Resource Centre. Critical Minerals, Critical Rights: The Energy Transition Must Change Course in the DRC.** <https://www.business-humanrights.org>